Imports And Exports (Control) (Amendment)

AN ACT TO AMEND THE IMPORTS AND EXPORTS (CONTROL) ACT,No.1 OF 1969

BE it enacted by the Parliament of the Democratic Socialist Republic of Sri Lanka as follows:

[2nd June , 1987]

Short title.

1. This Act may be cited as the Imports and Exports (Control) (Amendment) Act, No. 28 of 1987.

Replacement of section 8 of Act No.1 of 1969.

2. Section 8 of the Imports and Exports (Control) Act, No, 1 of 1969 (hereinafter referred to as the" principal enactment "), as amended by Act No. 48 of 1985, is hereby repealed and the following section substituted therefor:

" Authority granted by licences.

8. A licence granted to any person shall, subject to the conditions set out in the licence and to the provisions of this Act or any regulation made thereunder, authorize such person to import into, or export from, Sri Lanka, goods of such value and in such quantity or quantities as may be specified in the licence to.

Insertion of new section 11E in the principal enactment.

3. The following new section is hereby inserted immediately after section 11D, and shall have effect as section 11E of the principal enactment:

" Publication of list of importers who contravene regulations.

11E. Where the Controller is satisfied that any importer has imported any goods into Sri Lanka which do not conform to the standards specified for those goods in regulations made under this Act, the Controller shall in the interest of the national economy and the protection of public health, publish in the Gazette a list specifying the name and address of such importer and such other particulars as may be necessary to ascertain the identity of such importer. ".

Replacement of section 11 of the principal enactment.

4. Section 17 of the principal enactment is hereby repealed and the following section substituted therefor:

"Punishment for offences.17.

(1) Every person who is guilty of an offence under this Act shall be liable, on conviction after summary trial before a Magistrate, to a fine not exceeding five thousand rupees or to imprisonment of either description for a term not exceeding six months or to both such fine and imprisonment and in the case of any offence relating to the import of any goods in contravention of any regulations made under this Act relating to standards or quality control the Magistrate shall make order that such goods be forfeited to the State.

(2) Any goods forfeited by an order made under subsection (1) shall, upon such forfeiture, vest absolutely in the State and such vesting shall have effect

(a) where no appeal has been preferred against the order of forfeiture, after the expiration of the period within which an appeal may be preferred to the Court of Appeal against the order of forfeiture; or

(b) where an appeal has been preferred to the Court of Appeal against the order of forfeiture, upon the determination of such appeal confirming or upholding the order of forfeiture.

(3) The Controller shall have possession of any goods vested in the State under subsection (2) and may sell or otherwise dispose of them as he- may think fit. Where the Controller sells any such goods, the proceeds of sale shall be credited to the Consolidated Fund. ".

Amendment of section 20 of the principal enactment.

5. Section 20 of the principal enactment is hereby amended in subsection (2) of that section, by the repeal of paragraph (b) thereof and the substitution of the following paragraph therefor:

(b) the regulation of the standards, and the quality control of exportable or importable goods of any specified class or description. ".